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Solicitation/Contract Form Continuation

Instrument Name: Maintenance and Repair for EPS, UPS, and PV throughout the USAG-Wiesbaden

CONTRACT MINIMUM/MAXIMUM QUANTITY AND CONTRACT VALUE

The minimum quantity and contract value for all orders issued against this contract shall not be less than the minimum quantity and contract value stated in the following table. The maximum quantity and contract value for all orders issued against this contract shall not exceed the maximum quantity and contract value stated in the following table.

MINIMUM AMOUNT

EUR 3,000.00

MAXIMUM AMOUNT

EUR 3,000,000.00

DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND ORDER VALUE

The minimum quantity and order value for each Delivery/Task Order issued shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for each Delivery/Task Order issued shall not exceed the maximum quantity and order value stated in the following table.

MINIMUM AMOUNT

EUR 3,000.00

MAXIMUM AMOUNT

EUR 3,000,000.00

IDC NOTE

MINIMUM/MAXIMUM AMOUNTS NOTE: The guaranteed minimum under this contract is EUR 3,000.00. The guaranteed minimum is applicable to the entire contract period.

When preparing your quote, the ordering period pricing means that the Government can unilaterally issue a Task Order at any time during the ordering period and pricing is valid for the entirety of the Task Order (typically up to 12 months) to potentially include an up to six-month additional unilateral option using the RFO clause 52.217-8. For example, during the final ordering period an order can be issued on the last day of that ordering period for a full 12-month period of performance, additionally the Government can potentially unilaterally exercise the RFO Clause 52.217-8 (up to 6 months) at the end of that Task Order for the same price proposed for the last ordering period, meaning the price proposed for the final ordering period could be valid for up to an additional 18 months past the final ordering period.

*** END OF NARRATIVE ***

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

ORDERING PERIOD INFORMATION

PERIOD FOR PLACING ORDERS AND ORDER PERFORMANCE PERIOD.

a. The ordering period for this contract is a total of 60 months from date of contract award unless this ordering period is extended by the Government. Consequently, orders may be issued from date of award of this contract through 60 months or later if the contract's ordering period is extended.

Ordering Period 1: 29 July 2026 - 28 July 2027

Ordering Period 2: 29 July 2027 - 28 July 2028

Ordering Period 3: 29 July 2028 - 28 July 2029

Ordering Period 4: 29 July 2029 - 28 July 2030

Ordering Period 5: 29 July 2030 - 28 July 2031

b. Each order shall delineate the specific period of performance and / or delivery schedules, along with any Phase in/out Periods. Orders may be modified by the Government to increase or decrease the quantity of services or supplies to be furnished. Orders issued during the contract's ordering period may provide for performance or delivery after the contract's ordering period has expired. However, the term of any order including all options or modifications may not exceed 18 months after expiration of the contract's ordering period.

*** END OF NARRATIVE ***

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Preventative Maintenance Services Perform preventative maintenance in accordance with the manufacturer's specifications and as detailed in the Performance Work Statement (PWS) and Pricebook Attachment 1 for the following systems: System PWS Reference Emergency Power	1	Job		

	Systems (EPS) 2.1.1 Uninterruptible Power Supply (UPS) 2.2.1 Photovoltaic Systems (PV) 2.3.1. Pricing Arrangement: Firm Fixed Price				
0002	On-Demand Repair Services for EPS (PWS 2.1.2), UPS (PWS 2.2.2), and PV (PWS 2.3.2) systems. Work shall be priced based on the hourly labor rates in Price Book Attachment 1. Parts: Repair and spare parts are reimbursed at actual invoice cost, IAW PWS 2.15 and the "Payments" clause under RFO 52.212-4 (ALT 1). Limitations: This CLIN is funded to an estimated ceiling amount that shall not be exceeded without prior written approval from the Contracting Officer. Costs for labor or materials for repairs conducted during regularly scheduled preventative maintenance are not billable under this CLIN. Pricing Arrangement: Time and Materials	1	Job		

Continuation of Description

Requirements

Maintenance and Repair, on demand repair of Emergency Power and Power Generation Systems consisting of Emergency Power System (EPS), Uninterruptible Power Supply (UPS) and Photovoltaic (PV).

0001

Product Service Code : J061

North American Industry Classification System (NAICS) : 811310

0002

Product Service Code : J061

North American Industry Classification System (NAICS) : 811310

Continuation of Deliveries or Performance

0001	Quantity 1 Job Address and POC Service Performance Site DoDAAC: W582RS Period of Performance From 29 Jul 2026 To 28 Jul 2031
0002	Quantity 1 Job Address and POC Service Performance Site DoDAAC: W582RS Period of Performance From 29 Jul 2026 To 28 Jul 2031

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	2026-02		

52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation)	2026-02
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation)	2026-02

52.233-3	Protest after Award. (Deviation) (Alternate I)	2026-02	Alternate I	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	2024-10		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		

252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.245-7005	Management and Reporting of Government Property.	2024-01
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	2010-10
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation) (Alternate I)	2026-02	Alternate I	2026-02

Alternate I (Feb 2026) (Deviation). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause-

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

- (1) Performed by the contractor;
- (2) Performed by the subcontractors; or
- (3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means-

- (1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;
- (2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;
- (3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);
- (4) The following subcontracts for services which are specifically excluded from the hourly rate: **Not Applicable**; and
- (5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) *Inspection/Acceptance.*

(1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken.

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government,

any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) *Payments.*

(1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other direct costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: none (e.g., travel, computer usage charges, etc.).

(2) *Indirect costs (material handling, subcontract administration, etc.)*. The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: \$0.00

(2) *Total cost*. The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price*. The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records*. At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute

and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this

contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

52.219-4	Notice of Price Evaluation	2026-02
	Preference for HUBZone Small	
	Business Concerns. (Deviation)	

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Feb 2026)
(Deviation)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.225-7043	Antiterrorism/Force Protection for Defense Contractors Outside the United States.	2015-06		

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS
OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from

HQDA-AT; telephone, DSN 222-9832 or commercial (703) 692-9832.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment 2023-01
Instructions.

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1 (SERVICE)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0672</u>

Issue By DoDAAC	<u>W912CM</u>
Admin DoDAAC	<u>W912CM</u>
Inspect By DoDAAC	<u>W582RS</u>
Ship To Code	<u>W582RS</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>W582RS</u>
Service Acceptor (DoDAAC)	<u>W582RS</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>

Other DoDAAC(s)	<u>N/A</u>
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(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Primary POC: Aziz Demirbas

Email: aziz.demirbas.ln@army.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

I. Paragraph (a) Inspection/Acceptance: Inspection and acceptance will be performed at the locations identified in the PWS.

II. Paragraph (b) Assignment: is replaced by DFARS 252.232-7008 ASSIGNMENT OF CLAIMS (OVERSEAS).

III. Paragraph (k) Taxes is deleted and replaced as follows:

"(k) Taxes. The contract price includes all applicable Foreign, Federal, State, and local taxes and duties except for taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the country in which expenditures are made by or on behalf of the United States."

--End of Addenda--

*** END OF NARRATIVE ***

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	2026-02		
52.216-22	Indefinite Quantity. (Deviation) (Alternate II)	2026-02	Alternate II	2026-02
52.222-3	Convict Labor. (Deviation)	2026-02		
52.225-14	Inconsistency between English Version and Translation of Contract.	2000-02		
52.232-18	Availability of Funds.	1984-04		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	2026-02		
52.245-1	Government Property.	2021-09		
52.245-9	Use and Charges.	2012-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.225-7041	Correspondence in English.	1997-06		
252.225-7048	Export-Controlled Items.	2013-06		
252.232-7008	Assignment of Claims (Overseas).	1997-06		
252.233-7001	Choice of Law (Overseas).	1997-06		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		
252.242-7006	Accounting System Administration.	2025-01		
252.245-7003	Contractor Property Management System Administration	2025-01		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
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52.216-18

Ordering.

2020-08

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **Date of Award** through **28 July 2031**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19

Order Limitations.

1995-10

Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than **EUR 3,000**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of **EUR 3,000,000.00**;

(2) Any order for a combination of items in excess of **EUR 3,000,000.00**; or

(3) A series of orders from the same ordering office within **five (5) days** that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **five (5) days** after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Deviation) 2026-02

Indefinite Quantity (Feb 2026) (Deviation)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after **twelve (12) months after Contract expiration date.**

(End of clause)

52.217-8 Option to Extend Services. 1999-11

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **the duration determined at the Task Order Level**.

(End of clause)

52.217-9 Option to Extend the Term of the 2000-03
Contract.

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **the duration determined at the Task Order level**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend as determined at the **Task Order level**. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **the duration determined at the Task Order level**.

(End of clause)

52.252-2 Clauses Incorporated by 1998-02
Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul (RFO)

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.229-7001	Tax Relief. (Alternate I)	2020-04	Alternate I	2020-04

Alternate I. As prescribed in 229.402-70(a) and (a)(2), use the following clause, which adds a paragraph (d) not included in the basic clause:

TAX RELIEF-ALTERNATE I (APR 2020)

(a) Prices set forth in this contract are exclusive of all taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the Contractor's government. The following taxes or duties have been excluded from the contract price:

NAME OF TAX: <u>Value Added Tax (VAT)</u>	RATE (PERCENTAGE): <u>19%</u>
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(b) Invoices submitted in accordance with the terms and conditions of this contract shall be exclusive of all taxes or duties for which relief is available. The Contractor's invoice shall list separately the gross price, amount of tax deducted, and net price charged.

(c) When items manufactured to United States Government specifications are being acquired, the Contractor shall identify the materials or components intended to be imported in

order to ensure that relief from import duties is obtained. If the Contractor intends to use imported products from inventories on hand, the price of which includes a factor for import duties, the Contractor shall ensure the United States Government's exemption from these taxes. The Contractor may obtain a refund of the import duties from its government or request the duty-free import of an amount of supplies or components corresponding to that used from inventory for this contract.

(d) Tax relief will be claimed in Germany pursuant to the provisions of the Agreement Between the United States of America and Germany Concerning Tax Relief to be Accorded by Germany to United States Expenditures in the Interest of Common Defense. The Contractor shall use Abwicklungsschein fuer abgabenbeguenstigte Lieferungen/Leistungen nach dem Offshore Steuerabkommen (Performance Certificate for Tax-Free Deliveries/Performance according to the Offshore Tax Relief Agreement) or other documentary evidence acceptable to the German tax authorities. All purchases made and paid for on a tax-free basis during a 30-day period may be accumulated, totaled, and reported as tax-free.

(End of clause)

252.232-7007	Limitation of Government's Obligation.	2014-04
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LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

To be determined at Task Order level if incremental funding is required.

(a) Contract line item(s) _____ is/are incrementally funded. For this /these item(s), the sum of \$ _____ of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount

payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ <u>TBD</u>
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____

(End of clause)

List of Contract Documents, Exhibits, or Attachments

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Attachment 1- Pricebook	Attachment 1- Pricebook		01 May 2026			Attachment	No
0002	Attachment 2- Inventory List EPS UPS PV	Attachment 2- Inventory List EPS UPS PV		01 May 2026			Attachment	No
0003	Attachment 3- Representations And Certifications	Attachment 3- Representations And Certifications		01 May 2026			Attachment	No
0004	Attachment 4 - Reference Information Sheet	Attachment 4 - Reference Information Sheet		01 May 2026			Attachment	No
0005	Attachment 5 - IRS Form W-14	Attachment 5 - IRS Form W-14		01 May 2026			Attachment	No
0006	Attachment 6 - PWS EPS UPS PV	Performance Work Statement		01 May 2026			Attachment	No
0007	TE# 4.1_Inventory_List_EPS	TE# 4.1_Inventory_List_EPS		01 May 2026			Attachment	No
0008	TE# 4.2_Inventory_List_UPS	TE# 4.2_Inventory_List_UPS		01 May 2026			Attachment	No

0009	TE# 4.3_Inventory_List_PV	TE# 4.3_Inventory_List_PV		01 May 2026			Attachment	No
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Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-7	Information Regarding Responsibility Matters. (Deviation)	2026-02		

Information Regarding Responsibility Matters (Feb 2026) (Deviation)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror **has** **does not** have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective
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Date

252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	2019-12
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**COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-
REPRESENTATION (DEC 2019)**

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05
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**PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS
EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)**

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense

telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that **it will will not** provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.215-7008 Only One Offer.

2022-12

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable **TBD IAW RFO 15.403-3(a)**.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

RFO 52.212-1 is hereby tailored to reflect the changes shown below as to the specific paragraph being revised.

II. Paragraph (b) - Submission of offers should be sent to the Email listed below.

Primary:

kathleen.balon.civ@army.mil; laura.k.lindsay6.civ@army.mil

Secondary:

usarmy.rheinland-pfalz.409-contr-spt-bde.mbx.rco-wie-bids@army.mil

SUBJECT of e-mail shall be: "Submission of Offer W912CM-26-Q-A007"

Contract Specialist: Kathleen Balon

Contracting Officer: Laura Lindsay

Offer Due Date: 1 JUN 2026 12:00 Noon (CET)

NOTE:

(1) "Local Time" means Central European Time or Central European Summer Time as applicable on the date the offers or revisions are due.

(2) The date and time stated in the solicitation shall govern over any other dates or times that might be written in other sources (i.e., SAM.gov)

(3) The size restriction for attachments to emails on the US Government server is 10 MB.

(4) Email submission of the offer is mandatory. Failure to submit to all email addresses, identified above, may result in your offer not being considered for award.

(5) Offers should be submitted in English and sent in PDF format via email.

All questions regarding this solicitation shall be submitted in writing via email to all email addresses listed above. All questions shall be submitted no later than **TBD** calendar days after the issuance of the solicitation to allow the Government sufficient time to respond prior to the closing date. If applicable, please reference the PWS paragraph number relevant to questions. Answers to questions will be posted to SAM website at <https://www.SAM.gov> under the solicitation number. It is the Offerors' responsibility to monitor the web site for posting of amendments, answers to questions, and other instructions, if any.

SITE VISIT

A one-time site visit for this requirement will be held:

DATE: TBD

TIME: TBD

LOCATION: Lucius D. Clay Kaserne 65205 Wiesbaden, Germany

Prospective contractors should visit the site to ascertain pertinent local conditions as prescribed by RFO clause 52.237-1 "SITE VISIT". Interested vendors shall inform Kathleen Balon, kathleen.balon.civ@army.mil of their intent to attend the site visit and include the full names of all attendees no later than 14:00 hrs. Central European Time (CET) on 7 MAY 2026. **Only two (2) representatives** from each vendor may attend the site visit.

Site visit attendees are required to be at the main gate of Clay Kaserne no later than 09:55 of the scheduled date. The meeting point for the site visit is the Visitors Center on the right side of the main entrance to Clay Kaserne. All attendees must present their identification card or passport and car registration to gain entry. Security guards may perform body search and/ or vehicle inspections.

Attendees are requested to submit any and all questions during or after the site visit in writing to the POCs above. All questions and answers will be provided to attendees and interested vendors on SAM.gov.

INSTRUCTION FOR WRITTEN SUBMITTALS:

It is the Government's intention to award without discussions per RFO 52.212-1(d). Quoter is cautioned to examine this solicitation in its entirety and to ensure that their quote contains all necessary information, provides all required documentation, and is complete in all respects. The Quoter's initial quote should contain the Quoter's best terms from a price and technical standpoint. However, the Government reserves the right to clarify quotes or conduct discussions if later determined by the Contracting Officer to be necessary and in the best interest of the Government. The Government may reject any or all quotes if such action is in the public interest; accept other than the lowest quote; and waive informalities and minor irregularities in quotes received.

Detailed Quote Instructions:

This paragraph provides detailed instructions for preparing the quote.

Quote Format and Content: This solicitation utilizes streamlined acquisition procedures. Quotes will be evaluated by the Government based on the evaluation criteria stated in RFO 52.212-2 of this solicitation.

Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each original volume shall be appropriately numbered and identified by the complete company name, date and solicitation number in the header or footer. Page size shall be 8.5 x 11 inches. Pages shall be single-spaced. Except for the reproduced sections of the solicitation document, the text size shall be no less than 10 points. Use 1-inch margins on all sides of each page. Pages shall be numbered sequentially by volume. Page limitations apply in accordance with Table 1 below.

Table 1

Volume	Content
I	Certifications / Representations Fill-Ins and other associated documents listed in detail below. (Representations And Certifications-- Attachment 3)
II	Factor I - Technical (to include): • Element A - Certification / Qualifications: Certification (s) • Element B - Technical Experience (Reference Information Sheet -- Attachment 4) • Element C - Subcontracting Information. • Element D - Supplier Performance Risk
III	Factor II - Price 1. Completed "Attachment 1--"Pricebook"

Volume I - Certifications/ Representations/ Other Documents The Government will review all offerors' submissions for compliance, and any offeror that fails to comply with items checked below will be considered non-compliant and may be ineligible for further consideration for award.

1. Offerors' CAGE Code number and Unique Entity Identifier (UEI)

2. Completed SF1449, blocks 12, 17a (to include the CAGE Code), 30a, 30b, and 30c with Signature to include Acknowledgment of all Amendments to the solicitation (if any amendments are issued).
3. Signed Amendments (applicable if issued)
4. CLIN Price Schedule
5. The Offeror shall provide a technical volume, exclusive of all pricing information, as required in RFO Provision 52.212-2 and the Addenda of Provision 52.212-1.
6. Completed Provisions and clauses that have not been completed electronically, the Offeror must submit them with the offer, or in the specific case of RFO Clause 52.222-56, with the offer or prior to award.

The Offeror must complete all required representations, certifications, and clauses incorporated in this solicitation to include:

1. RFO 52.209-7, Information regarding Responsibility Matters
2. RFO 52.229-11, Tax on Certain Foreign Procurements--Notice and Representation
3. DFARS 252.204-7016, Covered Defense Telecommunications Equipment or Services
4. DFARS 252.204-7017, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services - Representation
5. DFARS 252.229-7001, Tax Relief
6. DFARS 252.229-7001, Tax Relief-Alternate I (for Germany only)
7. In accordance with RFO 52.229-11, if the Offeror represents it is a foreign person, then the Offeror shall submit the IRS Form W-14 with its offer.

As discussed in RFO 52.229-11 and RFO 52.229-12, the U.S. Government may impose an excise tax on payments made to the contractor and collect the tax by withholding up to 2 percent of each payment due the contractor. If the Offeror indicates it is a foreign person at RFO 52.229-11(d)(1), in order to claim exemption from this tax the Offeror should complete W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments. In accordance with various Agreements between the US Government and some governments such as those countries listed below, IRS Form W-14 is used to claim exemption from the tax. To claim exemption and avoid withholding, the IRS Form W-14 must be submitted with the offer.

If the offeror indicates that it is a foreign person in provision RFO 52.229-11 and indicates that it is fully exempt from the tax for reasons cited on their IRS Form W-14, then the contracting officer will include DFARS 252.229-7014, Full Exemption from Two-Percent Excise Tax on Certain Foreign Procurements, in the resulting contract.

Under current guidelines, the following qualified income tax treaties cover all nationals of the treaty country and exempt all such nationals from the tax imposed by 26 U.S. Code (S) 5000C.

Note: The Offeror is responsible for determining applicable exemptions, to include verifying the continued existence of the applicable tax treaty. For further information see <https://www.irs.gov/government-entities/excise-tax-on-specified-federal-foreign-procurement-payments>

Austria	Iceland	Slovak Republic
Bangladesh	Italy	Slovenia
Belgium	Jamaica	South Africa
Bulgaria	Japan	Spain
Canada	Latvia	Sri Lanka
Czech Republic	Lithuania	Sweden
Denmark	Luxembourg	Switzerland
Estonia	Malta	Turkey
Finland	Mexico	United Kingdom
Germany	Netherlands	Venezuela
Hungary	Portugal	

If the Offeror is claiming an exemption pursuant to a qualified income tax treaty as discussed above, the contractor should complete IRS Form W-14 with an appropriate statement in Part IV such as "The corporation is organized in [INSERT COUNTRY] with which the United States has a qualified income tax treaty that covers all nationals." Note that it is the Offeror's responsibility to correctly execute IRS Form W-14 consistent with applicable law and IRS regulations.

VOLUME II

FACTOR 1 - TECHNICAL - The Government will award a single contract pursuant to the Evaluation Methodology stated in RFO Provision 52.212-2. The PWS describes the services that will be acquired through this solicitation. The Offeror shall provide a technical volume, exclusive of all pricing information, consisting of the following:

Element A - Certification / Qualifications:

1. Contract Manager and Alternate Contract Manager **IAW para 1.13 of the PWS.**

The offeror shall provide documentation such as a Curriculum Vitae (CV), resume, or other credential document --demonstrating that the proposed personnel are:

- a. A certified Engineer or Master (Ingenieur, Techniker, Meister) in electronic or mechanical field with a minimum of three (3) years work experience in a company that manages or supervises maintenance or repair contracts; **and**
- b. Provide documentation or written statement that the said personnel is proficient in speaking and writing in both English and German languages.

Please Note: The proposed Contract Manager and Quality Manager can be one person.

2. Quality Control (QC) Manager **IAW para 1.13 of the PWS.**

The offeror shall provide documentation such as a Curriculum Vitae (CV), resume, or other credential document --demonstrating that the proposed personnel are:

- a. A certified Engineer or Master (Ingenieur, Techniker, Meister) in electronic or mechanical field; **or**
- b. Have no less than three (3) years' work experience in a company that carries out all QC measures to ensure quality and performance; **and**
- c. Provide documentation or written statement that the said personnel are fluent in German, also speak and write in English is desirable, but not mandatory.

Please Note: The proposed Contract Manager and Quality Manager can be one person.

3. Other Contractor Personnel Qualifications **IAW para 1.13.1 of the PWS.**

The offeror shall provide documentation such as a CV, resume, or other credential document --demonstrating that all proposed personnel meet the qualifications for their designated roles as follows:

1. All Technical Personnel:

- a. Certified, fully qualified and trained personnel for maintaining and repairing Emergency Power Generators, Uninterruptible Power Supply Systems, and Photovoltaic Systems; **and**
- b. Certificate of training, or equivalent qualifications to perform maintenance and repair on the Emergency Power Generators, Uninterruptible Power Supply Systems, and Photovoltaic Systems located throughout USAG Wiesbaden. A valid certificate must be provided to the Contracting Officer with the contractor's offer.

2. The Work Supervisor (Arbeitsverantwortlicher) --Must meet all requirements listed for Technical Personnel above, **and**

- c. Shall have no less than three (3) years experience performing the required services, **and**

d. Shall have a minimum of one of the following diplomas:

- (1) Apprenticeship diploma electrical engineering (unaltered German version ("Gesellenbrief/Facharbeiterbrief Elektrotechnik")); **or**
- (2) Apprenticeship diploma mechanical engineering (unaltered German version ("Gesellenbrief/Facharbeiterbrief Mechanik")); **or**
- (3) Apprenticeship diploma mechatronic engineering (unaltered German version ("Gesellenbrief/Facharbeiterbrief Mechatronik")); **and**

All certifications obtained abroad must be translated to German and certified by the Federal Ministry for Education ([Bundesministerium fuer Bildung und Forschung](http://www.bildung-forschung.de)) per www.anerkennung-in-deutschland.de.

Element B - Technical Experience:

The Offeror shall provide supporting documentation demonstrating that the Offeror and/or one or more of its subcontractor(s) have a minimum of three (3) years of "relevant" experience performed within the "recent" time period describe below.

- (1) "Recent" is defined as work ongoing or completed within five (5) years preceding the issuance of this solicitation.
- (2) "Relevant" experience is defined as performance of efforts involving requirements that are similar in scope and magnitude of effort of the type of work in the PWS.

Scope: Offerors must submit documentation showcasing experience and familiarity with the Emergency Power Generators, Uninterruptible Power Supply Systems, and Photovoltaic Systems listed in Attachment 2 "Inventory List".

Magnitude of Effort: A contract, or aggregated contracts during the five-year period, totaling at least 150,000 per year. A maximum of five (5) separate contracts may be combined as examples to satisfy this requirement.

At a minimum, an Offeror shall provide the following information for each contract that it relies upon to meet the "recent" and "relevant" experience requirements:

- (1) Primary place of performance and customer name;
- (2) Contract number (if such a designation exists);
- (3) A narrative explaining the requirement and how it is relevant to the requirements of this solicitation;
- (4) Contract performance dates; and

(5) Total contract value.

(b) the offeror shall submit an individual Reference Information Sheet (Attachment 4) for at least two (2), but no more than three (3), references for current or relevant contracts demonstrating the experience and skills required in the PWS. The Government may contact references to verify the accuracy of the information provided.

Element C: Subcontracting Information.

The Offeror shall provide the following documentation for either (1) or (2), as applicable:

(1) A statement that all work performed under the contract shall be performed exclusively by the Offeror, or

(2) A list of proposed subcontractors, joint ventures, or other business partners that will provide work under the contract. The list must contain contact information for each company and explain what work each party will perform under the contract. In addition, the Offeror must provide a letter of intent from each party on the list demonstrating intent to subcontract, partner or otherwise work with the Offeror in the performance of the contract. The letter must be written on that party's letterhead and signed by an authorized representative. The Government reserves the right to contact proposed subcontractors, joint ventures, or other business partners to verify letters of intent.

Element D: Supplier Performance Risk.

The Offeror shall submit their Commercial Government Entity (CAGE) code with the offer for verification of vendor risk in accordance with the Provision at DFARS 252.204-7024, Notice of the Use of the Supplier Performance Risk System (SRPS).

FACTOR 2 - PRICE

Offerors shall complete and submit the "Pricebook" for contract line items. Offerors shall only enter pricing in yellow-colored fields in the price book.

Offerors shall enter the total price in U.S. Dollars (\$) or Euros (), for each line item. Offers shall be provided with only 2-digits after the decimal point. Prices provided shall be fully loaded, inclusive of all fees, overheads, G&A, insurance, profits, or any other markups. Complete pricing for each CLIN or Sub-CLIN as required without taxes and duties for which the U.S. Government is exempt and including all shipping charges, FOB Destination to Germany. Failure to do so may be a cause for the offer to not be considered for award.

The Total Evaluated Price (TEP) shall be comprised of the summation of all CLINs. In the event there is a difference between a unit price and the total amount, the unit price will be held to be the intended offer and the total of the CLIN will be recomputed accordingly.

III. Paragraph (c) - Period for Acceptance of Offers - is tailored to read: The Offeror agrees to hold the prices in its quote firm for **90 calendar days** from the date specified in this solicitation for receipt of offers.

V. Paragraph (g) Contract Award - The Government intends to evaluate offers and make award (s) on initial proposal submissions. Therefore, the offeror's initial offer should contain the Offeror's best terms from a price and technical standpoint. Offerors are cautioned that the government does not intend to hold formal communications, clarifications, and/or discussions with offerors, as prescribed in RFO part 15. This procurement is being conducted using Simplified Acquisition Procedure in accordance with RFO part 12. As such, the government has broad discretion to fashion suitable evaluation procedures, inclusive of determining whether to permit offerors to revise their proposals and/or address any material failures in such submissions if determined to be in the best interest of the Government.

The completion and submission to the Government of the above items listed in this Provision will constitute the offer. The offer shall communicate the Offeror's unconditional assent to the terms and conditions in this solicitation, including any attachments and documents incorporated by reference. The Offeror's failure or refusal to agree to any of the terms and conditions of this solicitation or the Offeror's imposition of additional conditions or any material omission in its offer may constitute a deficiency which will make the offer unacceptable to the Government.

This request does not commit the Government to pay any costs incurred in the preparation and submission of your offer or in making any necessary studies for the preparation thereof, or for any visit the Contracting Officer may request for the purpose of clarification of the offer or for revisions provided in response to communications.

FAR 52.232-18, Availability of Funds

Funds are NOT presently available for this acquisition. No contract award will be made until appropriated funds are made available.

VI Paragraph (h) - Multiple Awards is tailored to read: Only one contract award will be made.

VII. Paragraph (I) - Debriefing/Request for Information. If an Offeror requests information concerning an award that was based on factors other than price alone, a brief explanation of the basis for the award decision shall be provided IAW RFO 15.206-1(a)).

--End of Addenda--

LOCAL PROVISION

5152.233-4002 AMC-LEVEL PROTEST PROGRAM (June 2016)

If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible contracting officer. However, you can also protest to Headquarters, AMC. The HQ, AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the Government Accountability Office or other external forum. Contract award or performance is suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. The AMC protest decision goal is to resolve protests within 45 working days from filing. To be timely, protests must be filed within the periods specified in RFO 33.103. Send protests (other than protests to the contracting officer) to:

Protest to HQAMC shall be filed at:

Headquarters U.S. Army Materiel Command

Office of Command Counsel-Deputy Command Counsel

4400 Martin Road

Rm: A6SE040.001

Redstone Arsenal, AL 35898-5000

Fax: (256) 450-8840 or e-mail: usarmy.redstone.usamc.mbx.protests@army.mil

Packages sent by FedEx or UPS should be addressed to:

Headquarters U.S. Army Materiel Command

Office of Command Counsel-Deputy Command Counsel

4400 Martin Road

Rm: A6SE040.001

Redstone Arsenal, AL 35898-5000

The AMC-level protest procedures are found at:

<https://www.amc.army.mil/Connect/Legal-Resources/>

If Internet access is not available, contact the contracting officer or HQ, AMC to obtain the AMC Level Protest Procedures.

(END of PROVISION)

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

The Technical rating will be based on an "Acceptable" / "Unacceptable" basis. An offer is un-awardable at any price if the Technical factor or any of the elements receives a rating of "Unacceptable." Award will be made to the responsible Offeror who submits an offer that (1) conforms to the requirements of the solicitation; (2) that receives a rating of "Acceptable" on the Technical evaluation factor; and (3) that submits the offer with the lowest Total Evaluated Price (TEP), provided that the TEP is fair and reasonable. [The Government reserves the right to award no contract at all .](#)

Rating	Description
Acceptable	Offer clearly meets the minimum requirements of the solicitation.
Unacceptable	Offer does not clearly meet the minimum requirement of the solicitation.

The following factors shall be used to evaluate offers:

FACTOR 1 - Technical:

Element A - Certification / Qualification

The rating will be based on an "Acceptable or Unacceptable" basis. The following definitions will be used to assign the rating:

Acceptable: The offer includes all of the documentation as required in the Addendum to 52.212-1 for Element A.

Unacceptable: The offer does not include all the documentation as required in the Addendum to 52.212-1 for Element A.

Element B - Technical Experience

The rating will be based on an "Acceptable or Unacceptable" basis. The following definitions will be used to assign the rating:

Acceptable: The offer demonstrates that the Offeror and/or one or more of its subcontractor(s) have "recent" and "relevant" experience as required in the Addendum to 52.212-1 for Element B.

Unacceptable: The offer does not demonstrate "recent" and "relevant" experience as required in the Addendum to 52.212-1 for Element B.

Element C - Subcontracting Information

The rating will be based on an "Acceptable or Unacceptable" basis. The following definitions will be used to assign the rating:

Acceptable: The offer includes all the documentation as required in the Addendum to 52.212-1 for Element C.

Unacceptable: The offer does not include all the documentation as required in the Addendum to 52.212-1 for Element C.

Element D - Supplier Performance Risk

The Government will consider Risk in accordance with the Provision at DFARS 252.204-7024, Notice on the Use of the Supplier Performance Risk System, as supplemented by this criterion. The Government will consider Supplier Risk as described in the Provision. The Government will NOT consider Item Risk or Price Risk as described in Provision. For purposes of this Risk assessment, the Government will only consider information contained in the Supplier Performance Risk System (SPRS). Any questions or concerns the Offeror has concerning its SPRS risk assessments should be addressed as described in paragraph (d) of DFARS 252.204 7024.

The rating will be based on an "Acceptable or Unacceptable" basis. If the Offeror does not receive an "Acceptable" rating for this factor, the offer may not be evaluated any further and the Offeror may be eliminated from further consideration for award. The following definitions will be used to assign the rating:

Acceptable: Offeror has a Supplier Risk Score of Green, Purple, Blue, or Black. Offerors without a Supplier Risk Assessment in SPRS will be treated as neutral which is considered acceptable.

Unacceptable: Offeror has a Supplier Risk Score of Yellow, Red, or Grey.

FACTOR 2 - PRICE

Price will be evaluated as follows:

(1) Completeness: The Government will review the pricing submissions for completeness and compliance with solicitation Provision FAR 52.212-1.

(2) Unbalanced Pricing: The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(3) Fair and Reasonableness: The Offeror's price will be evaluated in accordance with RFO 12.204(a). The realism of proposed prices will NOT be evaluated. If only one offer is received in response to this solicitation, the Government will follow the procedure at DFARS 213.500-70.

(4) Total Evaluated Price (TEP): The Government will add the total price for all options to the total price for the basic requirement to arrive at a total evaluated price (TEP) including the prorated six-month value of the final option period (RFO Clause 52.217-8) as described below. Except when an offer is in a currency not permitted by the solicitation, if the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency in accordance with RFO provision 52.225-17.

(5) Evaluation of Option to Extend Services. As part of the price evaluation, the Government will evaluate the Option to Extend Services under RFO Clause 52.217-8 by adding one-half of the Offeror's final option period price to the Offeror's total price. Therefore, the Offeror's TEP will include the prices for the base period and each option period, plus one-half of the final option period's price. If, however, the option to extend services is used prior to the end of the last option period, the option to extend services will be exercised at the rate proposed for the option period which the extension is used within.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.214-34	Submission of Offers in the English Language.	1991-04		
52.216-31	Time-and-Materials/Labor-Hour Proposal Requirements-Commercial Acquisition.	2021-11		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.225-17	Evaluation of Foreign Currency Offers.	2000-02		

Evaluation of Foreign Currency Offers (Feb 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using <http://www.oanda.com/currency/converter> in effect as follows:

- (a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.
- (b) For acquisitions conducted using negotiation procedures-
 - (1) On the date specified for receipt of offers, if award is based on initial offers; otherwise
 - (2) On the date specified for receipt of proposal revisions.

(End of provision)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06
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Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It is **is not** a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 a full exemption, or partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.237-1 Site Visit. 1984-04

Site Visit (Apr 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

52.252-1 Solicitation Provisions 1998-02
Incorporated by Reference.

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul (RFO)

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

(End of provision)